Mitigating Punishment: Interpretive Labor and Legal Aid Strategies in São Paulo's Courts

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Abstract. How do legal aid professionals influence penal state administration? This article conceptualizes court authorities, including legal aid professionals, as occupational actors who classify people and behaviors in ways that orient how and toward whom states exercise penal power. I argue that legal aid workers seek to mitigate the punitiveness their clients face through strategies to influence interpretations of their client's 'criminality' and the 'just measure' of state force during these classification processes. In so doing, they may both reduce the harm individual clients face while also contributing to court routines that naturalize the selectivity of penal state practices. To develop this argument, this article dissects the strategies of public defenders who counsel poor people facing prosecution for drug trafficking in São Paulo city, drawing on multiple data sources collected over 36 months of fieldwork in Brazil. By analyzing public defenders' strategies to instigate doubt, contest or negotiate other court actors' legal interpretations of clients' cases, I show how legal aid workers' accumulated knowledge about each court's *interpretive terrain* informs their taking or refraining from actions that could further jeopardize clients. However, these same routines also influence—and can even obscure—their perceptions of possible alternative outcomes for their client. This analysis demonstrates how probing legal aid strategies is a useful method to identify, synthesize and compare the conditions that influence different penal court processes and outcomes. More broadly, I spotlight the interpretive labor involved in street-level bureaucrats' work to influence state administration.

Keywords: penal state, symbolic power, courts, street level bureaucrats, legal aid

INTRODUCTION

How do legal aid professionals influence penal state administration? Legal aid professionals, such as public defenders, are occupational actors in many penal courtrooms across the world; yet little is known or understood about how they influence penal administration. In this article I conceptualize court authorities as occupational actors with the authority to classify people and behaviors in ways that orient how and toward whom states exercise penal capacity. I argue that legal aid workers seek to mitigate the punitiveness their clients face through strategies to influence interpretations of their client's 'criminality' and the 'just measure' of state force. In so doing, they may both reduce the harm individual clients face while also contributing to court routines that naturalize the selectivity of penal state practices.

To develop this argument, I examine the strategies of public defenders in São Paulo who defend poor people facing state prosecution for allegedly selling illicit drugs (i.e. drug trafficking). I dissect three strategies public defenders employ to mitigate punishment for their

clients in court: instigating doubt, contestation, and negotiation. By examining the interpretive labor involved in these strategies, I show how on the one hand, their accumulated knowledge about each courts' routines allows them to avoid taking actions that could further jeopardize their client; on the other, these routines influence—and sometimes obscure—legal aid workers' perceptions of viable alternative outcomes for their client. This analysis spotlights probing legal aid strategies as a useful method to identify, synthesize and compare the conditions that influence court processes and outcomes. More broadly, I spotlight the interpretive labor involved in street-level bureaucrats' work to influence state administration. I conclude with the study's contributions to research on punishment, state power, work and culture in action.

LEGAL AID SERVICES IN PENAL COURT

Between the 18th and early 20th centuries, written guarantees of the "right to legal counsel" became integral to new state republics across the western hemisphere. During the mid-20th century, providing access to legal counsel for poor people became widely adopted in written laws as a specific obligation of *the state* in many countries. Transnational networks of legal scholars, entrepreneurs and reformers since this period have hailed systematic access to legal services and expertise as essential mechanisms for advancing conceptions of "access to justice" described as crucial to advancing liberal ideals of "rule of law" (Abel et al. 2022; Alves and González 2017; Parker 2000). Economic deregulation policies and "neoliberal ideals" since the late 20th century resulted in the "retrenchment and reorganization" of legal aid for poor people in various domains in countries such as England, Scandinavia, the United States, and Wales (Hunter, Olesen and Sandefur 2022). By contrast, reforms ushered in unprecedented expansion of legal aid infrastructures and domains in various other countries over this same period—from Argentina, to Brazil, China, Colombia, Mexico, and the Philippines (Alves and González 2017; Ciocchini 2017; Ribeiro and Fondevila 2023). The scale of legal aid and the domains within which it is provided vary; yet legal aid for people facing state prosecution or punishment has been a constant priority for reformers in many countries.

Across time and place, legal aid has been provided to poor people in penal courts by various organizational means, which influences who chooses to work in such positions as well as the resources at their disposal to defend their clients—from law students working through volunteer clinics or non-profit organizations; to private attorneys working as outsourced agents of the judiciary or through law firms' pro-bono services; and state-employed staff attorneys (Cappelletti and Garth 1978; Cummings, Silva, and Trubek 2022; Ribeiro and Fondevila 2023). The organizational means by which legal aid is provided, and who qualifies to receive this service is influenced by political and professional struggles over the relationship between the state, the market, and legal experts (Moreira 2017; Nunes 2020). Various other factors have also shown to influence legal aid—from the relative administrative and financial autonomy of such offices, case work-loads, and cultural understandings of legal aid professions. In cases studied of public defender offices in the United States, for example, offices have faced many challenges to recruiting and retaining attorneys to staff these offices long term. Relentlessly high case-loads, low pay relative to other job alternatives for law graduates, and the cultural stigma of the public defender perceived as a person who "defends criminals" have made it challenging for offices to retain people, especially those with strong legal training (González Van Cleve 2016; McIntyre 1987; Wice 2005). Such dynamics shape the nature of the legal aid service provided to poor people facing state prosecution, and also the existence and continuity of the service itself. The

scant empirical research on public defender work largely focuses on the obstacles to legal aid workers' ability to defend their clients (Backus and Marcus 2018; Wice 2005). However, the ways in which legal aid workers *do* influence court processes remains little understood and under-theorized.

Written penal procedures in many countries enshrine legal aid as an essential mechanism for guaranteeing poor people's right to "fair trial" and western liberal ideals of "due process." Legal expertise has indeed shown to be a useful resource in various contexts for people to keep in check state authorities' practices and abuses of power in relation to written laws (Brinks 2007; Simon 2016; Ungar 2002). It is on this very basis that scholarship on legal aid emphasizes the imperative of this service for poor people facing one of the most coercive dimensions of state power: penal sanction (Weiss 2010; Wice 2005). Yet another vast literature shows how written laws and legally sanctioned practices themselves also produce, maintain, and reinforce unequal social orders along various lines of social exclusion (Alexander 2020; Castillo 2018; Fanon 2004; López 2006; Mattei and Nader 2008).

Studying the "law-in-action" is therefore crucial to avoid the analytic perils of what Eisenstein, Flemming and Nardulli (1988) call the "legal metaphor"—that is, the belief that the "Law" is a set of transcendent rules that embody something "uniform, general, continuous, equal, certain and pure" (p. 5). Written penal laws elaborate categories of criminalized behaviors, and the procedures by which evaluation of people facing state prosecution should be carried out. According to this myth, court actors are presumed to be agents who "enforce" "the Law;" by contrast, in practice it is those vested with the authority and expertise to carry out these procedures who produce the orientation of penal court processes.

Much research indeed demonstrates the importance of examining local court actors and their everyday work to understanding how legal processes unfold at ground level (Clair 2022; Feeley 1979; González Van Cleve 2016; Kohler-Hausmann 2013). However, the significance of local court actors to penal state administration remains undertheorized, which in turn obscures our understanding of the ways in which court actors influence state power (with Wacquant 2026 being a critical exception). In the following section I conceptualize court actors as core producers of symbolic state power (Bourdieu 1986, Wacquant 2026) who orient how and toward whom states routinely exercise their coercive capacity legitimately (or not); in so doing, I clarify how legal aid workers function as both mitigators and legitimizers of the punitive power faced by the poor and marginalized people they represent.

THE PENAL STATE, LAW AND COURT ACTORS

Scholars place great emphasis on the importance of the law to modern state bureaucracies, especially their ability to orient and legitimize how they are able to exercise their power. For Weber (1981), written laws, protocols and regulations define the domains and limits of state intervention and also how it should be wielded. This key distinguishing feature of modern bureaucratic states offers many practical advantages, especially in terms of bureaucracies' ability to more effectively and efficiently carry out a given objective, and at larger scale (Weber 1981). "Legal-rational" bureaucratic administration can also provide rulers a source of cultural power to exercise their capacity in a given domain. When practices are perceived to be "in alignment" with written laws, they may more effectively avoid the strong emotions we might otherwise feel in response to how rulers exercise their power, especially in the ways that they selectively exercise coercive force towards people (Pratt 2005; Santos 2022).

The routines described on paper in legal-rational bureaucracies are far from automatic. Indeed, in any domain, processes of state administration, the practical routines that compose them, and the very orientation of state power are also always shaped by the labor of the ground-level actors who carry them out (Barnard 2019; Sirois 2023). However, in addition to practical labor (Seim 2017), I argue that such work also routinely involves an *interpretive* labor. Drawing on Bourdieu's (1986) theorization of law as an especially potent resource of symbolic state power, I conceptualize court authorities as fabricators of processes that orient and legitimize penal state coercion; and they do so through their routine evaluations and judgements of "emergent situations" (Emirbayer and Mische 1998)—or cases—whereby they "fuse" (Alexander 2004) an official meaning about people and behaviors into written law. I then clarify how legal aid workers strategize to intervene in these processes to mitigate the coercion their clients face, and the labor of interpretation involved in doing so.

Naturalizing penal coercion through law's symbolic power

State rulers' ability to routinely exercise an administrative function is certainly an arduous practical feat (Mann 2012; Tilly 1990; Weber 2019); but it is also always a cultural one. In other words, they must achieve recognition of their administrative power in a given domain as legitimate in order to exercise it. Doing so hinges on their ability to accumulate and exercise "symbolic power" (Bourdieu 1989; Loveman 2005)—the power to inculcate a social reality that naturalizes their authority and how they wage it (Bourdieu 1986, 1989). Rulers employ strategies via institutions, codes and performances to draw on or influence a "cultural infrastructure" within which routine state interventions become possible. These strategies are used on various fronts in order to: (1) orient the tasks of people mandated to carry out state administration; (2) naturalize these actions as legitimate state practice in the eyes of influential segments of the populace; and (3) garner extra-territorial recognition of state legitimacy in broader global world orders (Brundage 2023; Norton 2014a; Reed 2019; Santos 2022; Smith 2016).

Law is an especially powerful type of symbolic power for modern state rulers. At its core, law is a collection of "words and concepts" that operate as a "reserve of resources of thought" (Bourdieu 1986: 330). It classifies people, behaviors and practices in ways that both orient and legitimize how states exercise their administrative capacity. Conceptualizing law as symbolic power brings to fore the effect of these words and concepts to normalizing ideas and practices that operate along lines of social exclusion. Given the requirements of entry into this specialized domain of power (i.e., the "juridical field") (Bourdieu 1986), and the relative distribution of authority within it, the practices and struggles that produce written laws naturalize categories that disproportionately favor privileged segments of society—be it through particular meanings of citizenship, sexuality, madness or criminality that differentially impact people's life chances (Alexander 2020; Brubaker 2009; Rosales 2020; Vogler 2021). The ways in which authorities in turn apply these categories selectively towards people further shapes lines of social division, hierarchies, inequalities, and conflict (Rosales 2020; Wacquant 2026a).

The "legal metaphor," then, is not only a myth, as Eisenstein, Flemming and Nardulli (1988) emphasize, but a very *powerful* myth: It is precisely the illusion (or *mis*-recognition, as Bourdieu would say) that law's content and form are neutral, universal and autonomous from other forces that makes it such a potent cultural resource for rulers to "construct a reality" that naturalizes state administration (Bourdieu 1986: 330). Here, I specifically focus on the law's symbolic power in the domain of penal state administration.

Penal administration is one of the most central and routine domains within which states exercise physical coercion toward people within the jurisdictions in which leaders claim the authority to rule. The ways in which rulers wage penal power plays a crucial role in the practical and symbolic organization of social life—it produces and enforces material divisions and hierarchies; and in fabricating meanings of criminality it is also a core communicator of the meaning and boundaries of citizenship (Hathazy and Müller 2016; Wacquant 2026a). However, in order for states to naturalize routine coercion, they need to do so in ways that are recognized as legitimate by aligning practices with what is perceived as "appropriate" within a given cultural infrastructure (Norton 2014a; Santos 2022; Spierenburg 1984).

First, rulers seek to naturalize penal power by consolidating people or groups as a legitimate *object* of violence in the eyes of influential segments of the populace (Norton 2014a; Smith 2016). For this reason, classification of a person as perpetrator of a punishable act—that is, a "crime" (Durkheim 1997)—is a necessary condition for legitimized penal coercion. Second, rulers seek to exercise culturally appropriate *modes* of coercion (Pratt 2002; Santos 2022). And third, penal state practices are more effectively recognized as legitimate when their execution is rationalized (ibid). Indeed, several even contradictory moral meanings have shown to undergird justifications of punishment in different legal contexts (e.g. retributive, reformative, utilitarian logics); but what is always at stake in written law is a rationalized construction of the specific categories of criminalized acts and the appropriate mode of coercion that constitute the 'just measure' of force to be exercised toward their perpetrators—*this* is what constitutes state coercion as 'punishment' instead of *'arbitrary'* (and therefore illegitimate) state violence. Written law is a crucial symbolic resource to produce this distinction; and various authorities are charged with "enforcing" it.

In modern state bureaucracies, penal state administration is composed of a division of labor of authorities and experts mandated to carry out distinct functions. Policing authorities selectively use legal definitions to arrest and charge people of having committed specific criminalized behaviors (Denyer Willis 2022; Herring 2019; Jones et al. 2023); and in so doing, they spotlight particular individuals as *contenders* for being subjected to state punishment. Subsequently, they are evaluated and judged by court actors and specialists, who are the final arbiters of who among them will be classified in written law as legitimate objects of penal force—i.e. through conviction and sanction. Importantly, to varying degrees and in different forms, any person subjected to the state's policing power or court procedures experiences violence--whether ultimately convicted or not (Feeley 1979); however, *legally-sanctioned* coercion is one of the most effective ways by which state rulers neutralize contestation of their use of force, and it has profound effects on people's lives and those of their families long term (Deckard 2025; Pager 2003).

Court procedures are performed as a process of 'truth-seeking' about an accused person's alleged intentions, behaviors, and proclivities; yet in practice, they are a labor process of truth-*making* (Foucault 1996). Written law is inherently ambiguous to varying degrees and therefore allows for multiple interpretations, and the work of court actors therefore plays a crucial role in producing penal state power *in action* (Wacquant 2026a). While court decisions most directly orient state action towards individuals, court actors' evaluation of each case is at the *situational* level. Meaning is never just something people objectively take from a situation—neither for those who live it nor their audiences—but also something they produce about it (Norton 2014b). The work of court actors—and other authorities mandated to "enforce" the law—then, is not to *identify* instances of extra-legal behavior; rather, it is to construct the very meaning of 'legal'

versus 'extra-legal' action by determining how these categories will be applied to emergent situations ("cases"). In the following section I elaborate the interpretive labor involved in doing so, and the strategies of legal aid professionals to intervene in these processes.

The court's *interpretive terrain* and legal aid workers' strategies

Routine state administration involves a practical labor that is carried out by actors within the horizontal and vertical constraints of their work environment (Seim 2017); but this work also always involves a labor of interpretation. Within particular constraints, actors exercise strategies they believe will optimize achievement of their distinct—even divergent—objectives relative to others, be they material, ideological, moral, or otherwise (Ermakoff 2010). Yet practical actions are preceded by a *mental labor*. As Daminger (2019) highlights, mental labor can take on various forms, from processing, to anticipation, planning execution, or "overseeing logistics." Indeed, it is precisely the mental work involved in social action—even in the most habituated of actions—that Emirbayer and Mische (1998) locate people's relative agency amid broader social constraints.

Actions are derived from a "temporally embedded process of social engagement" (Emirbayer and Mische's 1998) that involves considerations of the past, future and present in ways that inform decisions for action. Among these considerations are the different possible meanings that could be ascribed to a particular situation. Meaning is produced through "transactional contexts" in which actors are involved in a dynamic process of deriving significance from the situation (Emirbayer 1997; Goffman 2021; Norton 2014b; Reed 2011). Through their interactions, people come to have a shared mental space—what Reed (2011) calls a "landscape of meaning"—which makes particular actions possible, while excluding others; and pursuing a desired outcome involves the "effort" of engaging in an "intersubjective process" of simultaneously holding one's own and other relevant actors' points of view to evaluate alternative courses of action (Emirbayer and Mische 1998: 969).

The landscape of meaning is far from deterministic or static. Rather, it presents more or less likely possible meanings that can be attributed to a person or situation; and actors can identify opportunities to influence the landscape of meaning itself in ways that could favor their desired actions. For example, people may engage in performative practices to "fuse" a meaning about the situation that increases the possibility for desired trajectories of action amid particular constraints (Alexander 2004). By contrast, actions may instead focus on influencing a landscape of meaning to avoid undesired outcomes, as Hart (2021) demonstrates in the case of "trajectory guarding" in potentially emergent contexts of sexual harassment (Hart 2021).

In many domains of social life and interaction, different actors may ascribe different meanings to the same situation, which can be significant to explaining circumstances of mutual satisfaction as well as conflict (cite). In the case of certain occupational work, especially for those who carry out state practices, however, actors are required to take actions in relation to an *officially consecrated* meaning about a situation—that is, how people and behaviors have been classified into written law. Actors with the relevant expertise and authority therefore engage in what I conceptualize as an *interpretive terrain,* a shared mental space in which they seek to influence the official meaning attributed to individual situations to align with their interests.

In the case of penal court authorities, the central stake in this interpretive terrain is determining how abstract legal codes may be used to classify individuals who are facing state prosecution. Written laws define prohibited behaviors and practices as objects of state sanction,

as well as the appropriate punitive measures connected to them. Yet the ways in which laws are interpreted and translated into action are shaped various social conditions (Eisenstein, Flemming, and Nardulli 1999)—from their administrative, political, social and economic embeddedness, to resource availability, time, language, legal cultures and racialized logics (Clair 2022; Edelman 1992; González Van Cleve 2016; Ng 2009; Ng and He 2017; Travers and Manzo 2016). These dynamics also inflect, to varying degrees, political and cultural ideals projected by institutional actors in the broader global field of power (Ferguson 2021; Langer 2007). Such forces shape the horizontal and vertical constraints of court actors' interpretive terrain within their work setting and inform the interpretive labor they conduct—at varying degrees of consciousness—to determine their course of action.

The forces that constrain possible meanings that exist or that can be produced within each court environment's interpretive terrain become most consciously apparent for actors in less advantaged positions. This is what makes the experience of attorneys who defend people facing state prosecution a generative entry-point for grasping the logic of state power (Liu and Halliday 2016). A defining feature of such occupations is a mandate to defend the interests of people facing state prosecution; and mitigating punishment for clients is undergirded by two distinct but interrelated considerations. First, they seek to influence the likelihood of an accused person being associated with legal categories of 'criminality' (i.e. an object of state sanction) in the eyes of other influential court authorities. Second, they strategize to influence perceptions of the 'just measure' of coercion that should be exercised toward people who are ultimately classified as perpetrators of a crime (i.e. typically through some sort of 'guilty' verdict). It is in this way that defenders mitigate the sanctions that individual clients face on the one hand, and on the other, also contribute to court routines that further naturalize the selective orientation of penal state power.

Court processes are punitive for all people facing state prosecution (Feeley 1979); but those who occupy less privileged positions in society face the greatest disadvantages and challenges (Clair 2020). Examining the strategies of legal aid workers, as defense attorneys who counsel people who lack the economic resources to pay for an attorney, therefore presents a generative analytic approach to identify the multi-scalar constraints that produce legal power and naturalize state administration.

METHODOLOGY

To develop my argument, I examine the work of legal aid professionals who staff public defender offices in the Brazilian city of São Paulo—the largest metropolis in Latin America. Public defenders' everyday practices and strategies to influence court outcomes take place within a context of sweeping ongoing reforms in Brazil's written penal procedures (as in many countries across the continent).[1] The work practices of public defenders within this context offers useful comparative perspective. In moments of dramatic change, occupational actors become especially aware and reflective of the conditions and constraints of their work (Kucinskas and Zylan 2023). Given the swiftness of changes in Brazil's penal procedure and institutions, many

[1] Like most countries in Latin America, written penal procedure has undergone the most dramatic change in two centuries, described by a transnational network of "legal entrepreneurs" as a transition from inquisitorial penal procedures to an adversarial process of penal management and judgement (Ciocchini 2017; Langer 2007).

public defenders have worked in courtrooms over the years with different procedural rules, which gives them a fruitful comparative reference for what is unique or not about the conditions of the current courts within which they work and everyday court processes and outcomes.

My analysis of public defenders' strategies in São Paulo draws on a broader set of data collected through 36 months of field research in Brazil between 2017 and 2022 on the social trajectories, motivations and work practices of public defenders in Brazil. I conducted a total of 135 interviews for this study, including with influential national bureaucrats, public defenders and public defender office staff in the cities of São Paulo and Salvador, as well as other actors who compose the penal process (prosecutors, judges, court office staff, police, prison custodians). Interviews with public defenders were scheduled and semi-structured, lasting between 1.5 and 6 hours, and averaging 2.5 hours. I also conducted over 400 hours of participant observation, shadowing public defenders' daily work routines in the full range of their occupational environments (offices, courtrooms, police stations, detention centers, penitentiaries, and virtual video meetings). I supplemented and triangulated this data with: case files and audio-visual recordings of observed court hearings; and descriptive quantitative data from local and national state agencies.

For the present analysis, I specifically focus on the work of public defenders in São Paulo's post-indictment courts and their strategies to defend poor people facing state prosecution for allegedly selling illicit drugs (i.e. drug trafficking). The horizontal and vertical constraints that shape public defenders' strategies in these cases are especially dynamic to clarify when and why legal aid professionals employ certain strategies or not, and the interpretive labor involved in doing so. Moreover, the organization of public defender work in these courts is such that each public defender has a strong sense of commonalities and differences between their assigned courtrooms and those of their colleagues. These conditions bring to fore in an especially dynamic way the relational factors that influence struggles and negotiations with other court authorities (i.e. prosecutors and judges) over how to interpret and classify clients.

First, in the following section I situate the public defender within the broader context of penal state power in Brazil, and elaborate on the general organization of their work activities. Then, I dissect three strategies public defenders employ to mitigate punishment for their clients in court—instigating doubt, contestation, and negotiation—and the considerations that shape their pursuit of each.

THE PENAL STATE AND COURT AUTHORITIES

The Brazilian penal state and its public defenders

Since inception of the Brazilian state during the 19th century, policing forces and modes of punishment have played a central role in producing and sustaining highly unequal economic and political regimes along ethno-racial lines, from the policing of runaway enslaved peoples of Afro-diasporic and Indigenous descent, to inquisitorial legal cultures leaving the poor and ethno-racially marginalized groups with few formal means of protection from state repression. More recently, the country's return to electoral democracy in the 1980s coincided with a dramatic expansion of penal state force, from policing power, to court infrastructures and administrative capacities to incarcerate people. Selective deployment of this unprecedented scale of penal state capacity has served as a central political strategy for leaders across party lines, amid widespread

public anxieties about violence otherwise caused by complex forces (Azevedo and Cifali 2015; Lessing 2018).

The overwhelming majority of people targeted by this more robust penal state are the poor and disproportionately people who identify as preto ("black") or pardo ("brown" or "mixed race"). Rather than remedying the pervasive violence politicians purport to address, the selectivity of policing and punishment has exacerbated distrust of state authorities among the most disadvantaged groups of society, and intensified tensions and conflict along economic and racialized lines (Alves and Alves 2015; Wacquant 2008).

Highly lucrative financial corruption and crimes conducted at mass scale by people in the highest echelons of power are pervasive (Manso 2020); yet policing authorities overwhelmingly target the most economically destitute for property crimes. Moreover, over the past three decades, an unprecedented number of people have been incarcerated; and people charged or convicted for drug trafficking account for the second largest portion of people behind bars in Brazil (second only to property crimes). Booming illicit drug markets in Brazil[2] thrive through a web of clientelistic relationships among heavily armed *comandos*, private actors, and state authorities at various levels of political power (Arias 2009; Lessing 2018). Yet most people who are arrested are not the primary benefactors of these multi-billion dollar markets; instead, they are mostly poor drug users or (easily replaceable) low-level street dealers.

Given that the majority of people arrested and charged by the police are poor, most lack the financial means to pay for private attorneys. As a result, many rely on public defender offices for legal aid services in court. Public defender offices provide legal aid across all 26 Brazilian states and operate at both federal and state levels of administration. Most penal cases are processed at the state level; and while the institutional reach of state PDOs otherwise varies in the smaller jurisdictions of each state, PDOs are the primary institutional resource of legal counsel for indigent clients in metropolitan jurisdictions, which also process the largest number of state-prosecuted people.

The majority of people targeted and impacted by penal institutions are policed, managed and punished by organizations at the state level in Brazil. The city of São Paulo, capital of São Paulo State, is Latin America's most populous metropolis and also possesses the country's most robust penal infrastructure. Like public defender offices in other states, the Public Defender Office of the State of São Paulo provides legal aid to people in various domains. Of the 400 public defenders who work in the city, 111 of them specifically provide legal aid to people in penal cases, counseling people in an estimated 70 percent of all penal court cases processed in the city (DPE-SP 2019). Most public defenders received their law degrees from the country's top law schools. Amid a hypercompetitive market for legal professionals, working as a public defender in São Paulo has become one of the most sought after positions for law graduates, who vie for a limited number of positions in the office. For example, in 2019, 8,000 people took the São Paulo public defender service exam to compete for just 50 new positions (DPE-SP 2019).[3]

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[2] Over the past three decades, Brazil has become both a prime destination and transit site for illicit drug commerce; today, it rivals the United States as the largest consumer market for cocaine worldwide, traversing all economic segments of Brazilian society. It is also a key transit site for distributing illicit substances travelling from producers in Central America to consumers in Western European countries (Alves and Alves 2015).

[3] In addition to the social prestige and security of positions of public service, development and expansion of public defender offices over the past three decades corresponded to dramatic

Given the conditions of entry into the office, the profession has also greatly favored people who come from the most privileged segments of Brazilian society (white, more economically privileged), in stark contrast to the social positions and experiences of their clients.

In practice, people's social trajectories and backgrounds, as well as the motivations for pursuing or remaining in legal aid positions all inform in important ways what they perceive to be their occupational mission and how they go about pursuing it (Arriagada 2023; Weiss 2005). Yet also significant to how court processes are administered at ground level are the structural and relational constraints within which court actors carry out their mandate. In the next section I elaborate the organization and routines of public defenders' work in São Paulo's penal courts. Then, in the sections that follow, I examine strategies that public defenders employ to mitigate the sanctions their clients face in drug trafficking cases and elaborate how they navigate the varying interpretive terrains of different courtrooms.

Public defenders and their work routines in São Paulo's penal courts

In Brazil, once policing authorities have charged a person with having committed a crime, the situation is formalized via official legal documents into a "case" to be managed and judged by penal court authorities. In São Paulo city, the majority of cases are managed and judged in the Judicial Complex of Ministro Mario Guimarães—the largest penal courthouse in all of Latin America. More commonly referred to as the Fórum Criminal, or "Criminal Forum," the building is located in the city's neighborhood of Barra Funda. An estimated 8,000 people circulate throughout the courthouse each day—from court authorities and staff, to police, defendants and their families, witnesses, victims, and prison security officers. As in the rest of the country, an accused person is required to have access to a legal expert (defense attorney) to counsel them in each stage of the court process. Since most people lack the financial means to pay for a private defense attorney, public defenders counsel people in an estimated 70 percent of cases (DPE-SP 2019).

Cases are designated and processed in different courts within the courthouse both according to procedural phase as well as type of crime. The court procedure is organized according to three distinct phases: pre-indictment, post-indictment, and penal execution. First, court authorities evaluate the circumstances of a person's arrest by the police to determine the validity of police practices during their arrest, and whether the charged person should be held in pre-trial detention while awaiting further evaluation of their case (pre-indictment). Second, a prosecutor reviews the documents that compose the initial charge to decide whether they will formally prosecute the person for an alleged criminal offense. If they decide to do so—which is in the majority of cases[4]—this initiates the post-indictment phase, which instigates a series of practices to determine whether or not the accused person should be ultimately convicted of the alleged crime, or not. The third and final stage of the procedure concerns the implementation and management of a person's sentence if convicted. In the case of people whose sanction includes incarceration, for example, this process includes overseeing their advancement to progressively

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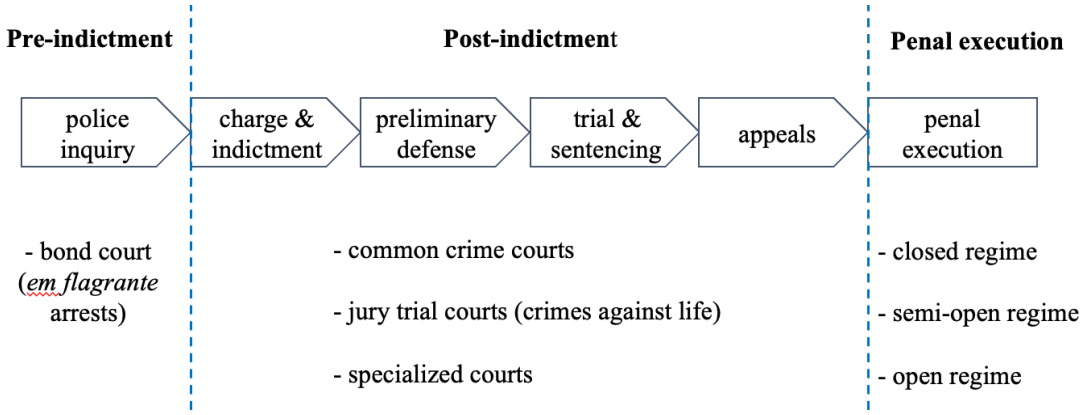
increases in public defender salarie. Indeed, although still paid less than prosecutors or judges, the public defender salary is higher than most alternatives in the broader—public *and* private—market for law graduates in Brazil.

[4] Barring exceptional cases when the bond court judge does not legitimize a police arrest, prosecutors in these penal courts choose to formally indict a person (CNMP 2018).

less punitive regimes over the course of their sentence—from "closed regime" (24 hour prison confinement), to "semi-open regime," and "open regime."

Public defenders' work is organized horizontally, with each 111 staff attorneys who operate in the penal domain assigned to a specific court within one of the three procedural stages. The largest portion of these public defenders (65) work in the second stage (post-indictment), which is the most decisive segment for the accused person; it is when court authorities evaluate the case to officially determine "What happened?" in the situation and the measures of state action that should be taken toward the person accused of a crime.

Diagram 1. Sequence of court practices (pre-indictment, post-indictment, penal execution)



Within the post-indictment phase, each public defender works in either a specialized court or general crime court. Most cases are evaluated in *varas singulares, or "common crime courts.*" These courts manage cases for which the minimum punishment is two years in prison or more (except "crimes against life" which go to trial by jury); it is therefore within these courts that people face the possibility of being subjected to the state's most coercive modes of punitive power. 31 common crime courts are distributed throughout the courthouse's ground floor, each with a corresponding clerk's office to manage the unit's bureaucratic functioning. Each court has an average of 4,000 active cases managed by a "workgroup" composed of two judges, four prosecutors, and two public defenders who work across two courtrooms.

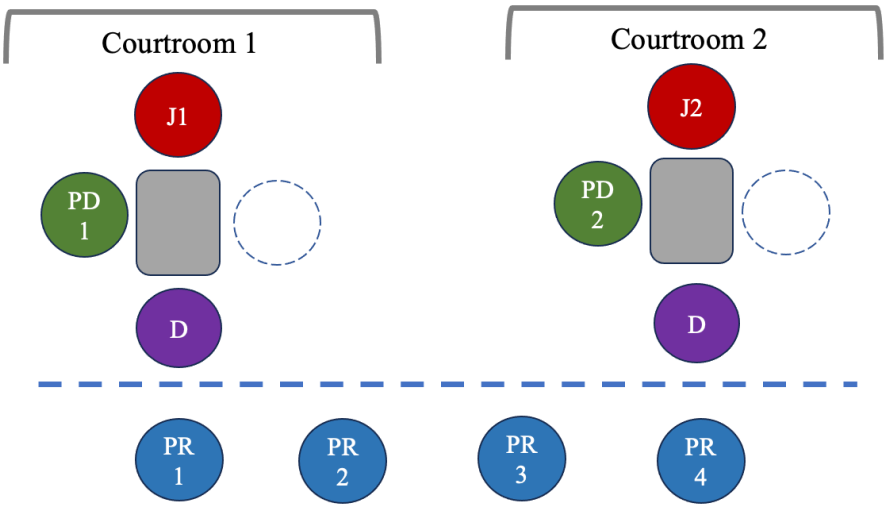
Within any legal aid context, not all public defenders have the same "style" of defense for their clients (Alschuler 1975; Skolnick 1967).[5] Moreover, no case is ever exactly the same to fully explain differences in case outcomes. However, given the organization of work within common crime courts, each public defender develops a strong familiarity with the interpretive terrains within which their cases are evaluated, and how different relational dynamics are likely to impact potential outcomes for a particular client.

[5] Court communities are influenced by the distinct styles of defense attorneys, prosecutors and judges in different courtrooms. Some defense attorneys may have a more "cooperative" approach, while others may be more "adversarial" in how they defend their clients (Skolnick 1967). See also Alschuler (1975) for elaboration on different defender styles.

Within each common crime court, each of the two judges manages half of the court's total caseload and routinely presides over one of the two courtrooms. Similar to judges, one public defender is assigned to routinely work in each of these two courtrooms; this allows them to develop a strong sense of how their judge rules in different types of cases, including the level of scrutiny they are likely to apply to materials and testimonies. They also develop a strong sense of the perspective of the judge in the *other* courtroom within the same court. With only two extra substitute public defenders to cover absences across all 31 penal courts (or 62 courtrooms), working the dreaded "double docket" when a colleague takes vacation time or is out sick is a routine occurrence. Public defenders reported taking on a double docket at least once a month, lasting from a few days to several weeks, when they take on the cases *and daily hearings* of both courtrooms. They therefore come to have a strong sense of the extent to which each judge's perspective is similar or different relative to the judge in their own courtroom and how this may in turn inform their strategies.

In contrast to judges and public defenders, the court's four prosecutors manage cases that may be assigned to either of the two courtrooms. Throughout the week, prosecutors alternate between working in their offices doing the paperwork of case management and attending trial hearings; for each hearing day, they attend hearings in one of the two courtrooms, rotating between them throughout the week. As a result, public defenders develop a sense not only of how different judges may alter their strategies each each courtroom, but how the dynamic of each case can vary even within the same courtroom on different days of the week depending on the presiding prosecutor (See Diagram 2).

Diagram 2. Designation of court assignments throughout the work week



Cases in which a public defender's client is accused of drug trafficking are especially illustrative of these dynamics. Public defenders have many shared challenges, but also important differences in the constraints within which legal truths are produced about their clients in different courtrooms. In the following sections, I elaborate three strategies public defenders employ to mitigate the punishment their clients face in drug trafficking cases within different courtrooms. In so doing, I identify shared constraints as well as important differences in the

interpretive terrains that inform public defender strategies to mitigate the punitiveness experienced by their clients.

MITIGATING PENAL STATE COERCION

In any domain, people consider the range of possible outcomes to determine which action is likely to maximize their interests (Ermakoff 2010). This process involves multiple forms of mental "effort" that are activated to varying degrees in each situation (Emirbayer and Mische, p. 971): (1) They selectively re-activate past patterns of thought; (2) they project, or imagine, possible future trajectories of action that consider how received structures of thought and action can be "creatively reconfigured" in relation to desires or fears for the future (p. 988); and (3) they make *practical and normative judgements* among alternative possible trajectories in response to emerging demands, dilemmas and ambiguities (p. 994). This work involves multiple temporalities and determining which action to take also involves an actor holding their own perspective on a situation, as well as that of other relevant actors (Emirbayer and Mische 1998). For legal aid workers, determining which course of action is likely to mitigate the coercion their clients face involves several levels of interpretive labor.

First, given the inherent elasticity of written law, they interpret the range of possible meanings that can be exploited by formal codes and categories, and which meanings are viable within the horizontal and vertical constraints of their courtroom's interpretive terrain. Second, they anticipate the meaning other court authorities are likely to ascribe to the case situation, and the relational dynamics between them. Third, they evaluate the distribution of power among relevant actors, and the resources at their disposal within it, to influence the legal meaning likely to be ascribed to a case situation. In the following sections, I elaborate three strategies public defenders in São Paulo pursue to do so: instigating doubt, contestation and negotiation.

Legal aid strategy 1: Instigating doubt

The presumption of a person's innocence until "proven" guilty in many penal codes of the world reinforces the significance of "certainty" about what happened to exercising legally sanctioned state coercion. A person's actions or behaviors, including if and *why* they exercised certain practices, are all at stake when they are facing state prosecution (Foucault 1996). Different actors are involved in the "fusing" a meaning about each case situation. A key strategy, then, for legal aid workers is to *instigate doubt* in the minds of the judge about the content of the 'truth' in construction—that is, by somehow destabilizing, or *de*-fusing, interpretations about the situation that ascribe guilt to their client. For public defenders in São Paulo, police work and testimonies are a central focus of these strategies because they are the primary resources used for prosecutors to produce a guilty verdict.

Police work, the materials they produce, and their accounts of the culpability of the charged person also integrally inform the more and less likely interpretations by court authorities of "what happened" during their evaluations (Jesus 2018). A formal penal charge is initiated with the *inquerito policial*, or civil police report, which is the first official document to narrate the situation of the case—who is being charged by the police for having practiced a criminalized act, the type of action they are accused of having committed, the date and time of the alleged action, and any observations or items collected and considered "relevant" to the situation. Each report includes signed eye-witness accounts by two arresting police officers as well as those of any

other witnesses, and a signed written account by the defendant after being interviewed by a civil police officer in the police station at the time of arrest. Policing authorities therefore are the first to narrate a version of "what happened" in the situation and also provide the central materials on which prosecutors evaluate the situation and selectively use to fuse the basis of their prosecution.

The significance of police work and statements to fusing legal meanings is especially salient in drug trafficking cases. The city—and state—of São Paulo are an epicenter of illicit commerce; yet most drug trafficking charges are not the outcome of active police investigatory work of this elaborate and lucrative illicit market. Instead, over 92 percent of cases are based on *em flagrante delicto* arrests, where a person was allegedly "caught in the act" of selling illicit drugs; and most arrests are made during military police patrols in economically disadvantaged and socially marginalized neighborhoods of disproportionately *preto* and *pardo* people (Alves and Alves 2015; Semer 2019). Most often, there are little to no other materials that compose the case beyond a police report and police testimonies. Indeed, arresting police officers are the only witnesses for the prosecution in 90 percent of drug trafficking convictions (Semer 2019). Police work, materials and statements are therefore the central target of public defender strategies to instigate doubt about their "version" of the situation; and the bench trial is a crucial moment to do so.

Each bench trial is composed of the following sequence of events: verbal testimonies from prosecution witnesses, then defense witnesses, and lastly an interrogation of the accused person, who will also be asked whether they confess or deny to having committed the crime, or remain silent. Judge, prosecutor and defense attorney each ask the witnesses and defendant questions, which can serve to clarify their own interpretation of the situation or strategically alter the interpretations of other court authorities. Then, prosecutor and defense attorney each make "closing arguments"—a performance of the version they would like to be accepted and consecrated as 'true'—about the defendant.

One public defender strategy involves fusing an alternative meaning about the situation, be it a straight out denial that their client was in possession of illicit drugs or fusing an alternative explanation for their possession, i.e. for personal use—which absolves them of the drug trafficking charge and avoids imprisonment. During my observations of one bench trial, for example, three family members provided testimonies about Júnior, the public defender's client being accused of drug trafficking. One by one they sat in the plastic blue chair in front of the judge's clerk table in the 4 x 5 meter courtroom. His mother spoke about Júnior's long struggle with using crack. His aunt shared how she took Júnior to church every week on Sundays and also to a Thursday night church meeting for people who specifically have challenges with addiction, but "he just couldn't stop." His grandfather shared how it had gotten so bad that Júnior sold everything he could get his hands on at home: "He even sold all of the dishes and silverware in our kitchen to be able to buy drugs." Before his grandfather left the courtroom at the end of his testimony, Júnior, tears falling down his cheeks, looked at him, shook his head and apologized "for everything." After Júnior gave his own statement during his interrogation, the prosecutor turned to the judge: "You know it doesn't matter that he uses drugs, he could have still been involved in the trafficking. Sure, they didn't find any drugs *on* him, but the police said that he was working the *lookout*." "You're right," the judge responded, "he could have been a lookout, but the problem is we just don't know.

Júnior's case turned out to be among the rare cases I observed throughout my fieldwork in São Paulo where a person was ultimately absolved in a drug trafficking case (i.e. not convicted). The case was an exception for many reasons, which the public defender herself

acknowledged in my interview with her just one day after my observations of the hearing: "We typically aren't able to do much to construct the defendant's version." In part, public defenders highlighted lacking resources and time to actively seek out materials or witnesses to fuse an alternative account. With over 90 percent of prosecutors' charges going to trial, hearings are the most consuming part of public defenders' job. Hearings are routinely scheduled in the afternoons from Monday through Thursday, and in some courts also Fridays. Averaging five hearings per day in each courtroom, beginning at 1:30pm and ending by 6:30pm, public defenders counsel people in three to four hearings each day, with each hearing ranging from 25 to 70 minutes. When not in hearings, public defenders work in their offices down the hallway from their courtroom—writing preliminary defense arguments, petitions, appeals, and writs of habeas corpus.[6] The availability of witnesses and materials largely depends on clients' family members, like in the case of Júnior—whose family sought out the public defender's office—or on the initiative of clients themselves.

However, having more time or resources would far from resolve public defenders' challenges. Some people who could potentially serve as witnesses for their clients fear repercussions from the *comando* groups that establish order in many poor communities. Others fear the state itself: "If a person already has a criminal case history themselves, they don't want to appear in the courthouse. Or if they live in a neighborhood where drug trafficking is pervasive, they know that the police will continue to patrol the area and they're afraid to come to court for fear of being recognized later [in the neighborhood] and face retaliation."

In a minority of cases in which a witness does come forward, the public defender has to decide if they are a "good witness" within the interpretive terrain of their courtroom: "What a good defense witness usually comes to say is something like, 'I saw the police approach and the person wasn't with any drugs on them,' or 'I saw the person just before the police approached them and they weren't selling anything.' Something that in some way supports my client's defense." By contrast, other people willing to testify may jeopardize their client, even unintentionally: "I'm especially wary of putting family members on the stand to testify; they can be so well-meaning but can sometimes be too sincere. One time my client's mother apologized to the judge and said 'I told my son not to get involved in that kind of trouble'"

In the absence of materials or "good" witnesses to fuse an alternative account of the situation in most cases, then, what most centrally guides public defender strategies is a dialogic exercise with police witnesses to de-fuse *their* account:

> Sometimes for example there's a police operation, with five police officers, say. Sometimes they arrested two people, and sometimes it wasn't even the police officer who arrested him who ends up writing the statement and showing up in court. So the first question I ask the police officers is if there weren't more people at the scene. Who was there in the car with them? And then you have to deconstruct a whole narrative, like, "Look, there had to be more people in the car. There was a police raid, right?" […] "Who was involved in the operation? Who else did you see? Where is the drug *user*? You didn't arrest them too? What did the user look like?" Try to deconstruct what the police has said.

[6] Two university law student interns are their primary source of assistance (in contrast to prosecutors, who have up to three interns and also a well-paid legal assistant with a law degree).

While this was a central strategy for public defenders overall, the likely outcome of this strategy varied across different courtrooms. During my observations, public defenders would often explicitly share with me after a hearing either their frustration that their client hadn't been assigned to "the other courtroom," or, that they had been "lucky to be in this one." For example, a defense witness could be decisive in one courtroom—like in Júnior's case—while in others, they face a prosecutor or judge who attributes nearly unquestionable validity to police work:[1]

> Many judges and prosecutors see defense witnesses with a lot of resistance. There are some judges that already in that same moment charge the witness with false testimony on the sole basis of their testimony contradicting what the police is saying. So it's not a question of analyzing who has presented a more plausible or truthful version. This happens in a lot of courtrooms.

Despite few cases having defense witnesses overall, the underlying consideration sustaining this variation across courtrooms is one example of a broader constraint that informs public defenders' evaluations of likely outcomes—that is, prosecutors' and judges' perceptions of the validity of police work and statements:

> I regularly get off work later than my colleague. In her courtroom, a hearing might end in less than 20 minutes. The judge there doesn't ask the police a lot of questions when they take the stand to give their testimonies. My judge, well, he goes into every little detail in his questioning of the police officers, the distance from which they observed my client, what they actually *saw*—did they see the drugs held in my client's hand? Or were the drugs positioned somewhere near him, but not *on* him? Etc. It's pretty common for a hearing to take 45 minutes or longer to get through. He's more scrupulous about inconsistencies with the police, and I can open up more questions myself in that space. A defendant is much more likely to get off with my judge.

Despite this variation, 85 percent of drug trafficking charges in São Paulo result in conviction (Semer 2019), successfully instigating doubt about police accounts is the exception; there is a strong tendency for judges to attribute validity and trust to police work, oftentimes explicitly justifying their conviction in their written decisions on the basis of the "honor" and "seriousness" of their work (Semer 2019). However, public defenders remain attentive to the different opportunities available within the interpretive terrain of their courtroom to reduce the sanctions faced by convicted clients.

Contestation

Rationalizing penal administration is important to the legitimacy of state authority (Santos 2022). Written procedures describe a rationalized application of coercion as punishment, defining in elaborate detail the protocols for evaluating each case situation, and also a quantified system of distinct sanctions attached to each crime. Ensuring rationalized application is so important that most systems are composed of a vertical structure of appellate courts, which are

[1] See Jesus (2018) for elaboration on how police testimonies in *em flagrante* cases are central to the discursive construction of "juridical truths" in Brazil.

mechanisms through which court actors may contest the verdict of their client's case—be it to contest the basis of a conviction or the sanction the judge meted out for that conviction. Crucial for São Paulo's public defenders, then, is identifying when it is in their client's favor to contest the verdict of their case through appeal.

There are two main levels of power that compose the appeal process in Brazil, including a state and federal level of appeal. First, in the state court of appeal a panel of three judges evaluates the trial judge's decision. If the defense attorney is unsatisfied with the state appeal court's decision, they may then appeal to the federal court level, typically evaluated by judges in the Supreme Court of Justice. In contrast to the trial stage, no hearings take place when cases are re-evaluated in subsequent appellate stages. Rather, the public defender submits a *written* contestation of the trial judge's decision. In São Paulo, public defenders report that *reversing a conviction* in higher courts is a rarity; by contrast, considering whether or not to appeal the punitiveness of a client's sanction is a routine consideration for many public defenders. Knowing when to successfully employ this strategy involves anticipating how their client will likely be classified (a) within their specific court versus (b) that of higher appellate ones; and the likelihood of a misalignment (or not) between these courts' interpretations informs if and when they choose to contest the verdict of a case.

Cases where people are convicted of drug trafficking for the first time are exemplary of this dynamic. Variation in the points of view of prosecutors and judges as well as the relational dynamic between them produce significantly different sentencing outcomes in different courtrooms. In one courtroom, judges may routinely sentence a person to 1 year and 8 months of community service (i.e. an "open regime" punishment). By contrast, in another, they may be sentenced to five years in prison (closed regime), confined in dilapidated and overcrowded penitentiaries, where they may depend on family visits for their basic living needs, and even be forced to become soldiers of *comando* factions as means of survival (Manso and Dias 2018). In courtrooms where the "going rate" is five years in closed-regime prison, submitting written appeals is part of the public defender's daily work routine:

> From the trial court level through the final level of court of appeals (the Supreme Court of Justice - STJ), I'm able to modify the sentence. If not in 100 percent of cases, then in 99 percent. Now, the sentence reduction doesn't always go as low as one year and eight months in open regime, but it'll be reduced for sure. Sometimes in the STJ I can get their sentence reduced to something that puts them in semi-open regime confinement.

Importantly, submitting appeals requires that public defenders already "set things up" during the bench trial to increase the likelihood that their contestation will be successful. What comes to be classified as the just measure of force is necessarily linked to the way in which a person's criminality is also classified in this first stage. For example, technically, according to written law the minimum prison sentence for drug trafficking is five years (max 15 years); however, the lower sentences are related to the possibility of qualifying for a sentencing "privilege." In order to qualify, a person must be (1) a first-time offender; (2) have no ongoing criminal case and (3) have no "affiliation with organized crime" (Semer 2019). The meaning of this final qualification is ambiguous, however. Public defenders therefore need to do the work of "distancing" their client from interpretations of the situate that would associate them with organized crime. For example:

> If I start to feel that the police [witness] responses have gaps, I start to ask questions about if my client was trafficking in other moments, so I can start to distance the idea that this activity is directly connected to organized crime. "I ask if there was some sort of notebook indicating trafficking movement, or if he [the police officer] was able to find any sort of concrete evidence that my client belonged to a criminal organization. But deciding to ask these questions is really part of the moment because sometimes this could backfire for my client.

In any situation of strategic action, the conditions under which people employ strategies to maximize their interests are not static (Ermakoff 2010). In São Paulo's courts, public defenders' success in appealing sentences has also generated more systematic change in some courtrooms at the trial level. During one of my days conducting observations in the courthouse I shadowed Rafael, who was taking on the infamously dreaded "double docket"—where he had to manage concurrent trial hearings for both his clients and those of his colleague. I spent the afternoon tailing his heels as he popped in and out between both courtrooms. At one point, there were defendants in both courtrooms facing prosecution for drug trafficking, both for the first time, and without hesitation, Rafael chose to go into his colleague's courtroom to be present for her client's hearing. Rafael later explained:

> I'm appealing very infrequently in my own courtroom these days because I was able to transform the position-taking of my judge. I was able to show him that in a situation where he would give five years in prison he should give a sentence of one year and eight months. That's the first point. And then I was also able to show him that instead of one year and eight months in closed regime it should be in open regime in certain cases. "So these days I'm really not submitting appeals anymore in first-time drug trafficking cases, except for when I'm taking on cases from my colleague in the courtroom next door.

Over time, then, successful acts of contestation can transform the constraints of an interpretive terrain, and even lead to seemingly unlikely alliances, depending on the relational dynamics among workgroup members. Public defenders describe the position-takings of their judges and prosecutors along two poles: on the one end there are the *garantistas* ("guarantors of the law") and on the other the *justiceiros* ("avengers"). *Garantistas* represent those whom public defenders perceive to be most favorable to the defense; by contrast, *justiceiros* are those who pursue what public defenders perceive to be excessive or an abuse of their authority. When a public defender works with a judge they perceive as *justiceiro*, but a particular prosecutor is more *garantista*, this may lead to seemingly unlikely alliances in relation to acts of contestation

For example, according to written law, a convicted person's sentence is constrained by that proposed by the prosecutor; however, in some courtrooms, judges mete out sentences that *surpass* the punitiveness of the prosecutor's position. When both public defender and prosecutor anticipate a likely reduction in the sentence, and depending on the rapport between the public defender and prosecutor, this may result in the prosecutor writing a statement that *supports* the public defender's appeal of the judge's sentence. As one such prosecutor explained: "Every appeal from the public defender generates more work for me too, so if higher courts are routinely interpreting sentencing guidelines in a particular way in these appeals, then the judge needs to fall in line. Otherwise, I'm just doing unnecessary work for appeals I know the public defender is going to keep winning."

While some judges mete out more punitive sentences than others, not all defense appeals will yield the desired outcome; and the time it takes for higher courts to evaluate an appeal is also an important consideration for public defenders. Moreover, if on the one hand public defenders can contest sentences they perceive to be "too punitive," prosecutors may also appeal sentences they perceive to be "too lenient." Depending on the constraints of their interpretive terrain and the relational dynamics between the workgroup, then, public defenders may instead choose to engage in strategies of negotiation.

Negotiation

A crucial moment for public defenders to consider negotiating[7] with a judge or prosecutor is during the trial hearing itself, after all witnesses have provided testimony and *before* the defendant's interrogation, when their client will have to decide whether to deny, confess or remain silent. One of the most central and routine bases for negotiation is the possibility of a client submitting a confession. Such confession would make their client ineligible to later contest (or appeal) their conviction or sentence to a higher appellate court. In exchange, however, an agreement would be made to reduce the punitiveness of their sentence, in relation to what it would have been otherwise.

In addition to identifying when to negotiate, public defenders also consider *with whom* they should negotiate. In courtrooms where judges routinely *surpass* the perspective of the prosecutor in terms of what they consider to be a "reasonable" sentence, it may sometimes be more prudent to negotiate rather than contest the sentence:

> After the second officer was excused from the room following his account of things, Catarina [public defender] stood up and nodded to the military police soldier to escort Raúl [client] into the hallway. Right before exiting into the hallway, Catarina turned toward the judge and they locked eyes in what seemed so routine that few words were needed. "I'll give three years and five months in semi-open regime," said the judge, and Catarina nodded back. Like in most cases, this was Catarina's first time speaking with Raúl. With less than five minutes to talk, she introduced herself to him and shared her take on his case: "Both police officers gave the same story of things and knowing the judge—I've been working with her for several years now—she's going to convict you. Usually, there isn't any benefit to confessing for people accused of drug trafficking for the first time, but in your case the judge has agreed to reduce your sentence from closed regime to semi-open regime if you confess. Now, if you didn't do it and don't want to confess, we can always appeal the decision. But reducing your sentence won't likely happen in the STATE level court of appeals. They're tough. If your sentence were

[7] Research in other contexts also highlight dynamics of negotiation that are central to court processes and outcomes (e.g. Eisenstein and Jacob 1977; Nardulli 1986). Most work on negotiations has focused on plea bargain deals in the United States, which involves an admission of a defendant's guilt in exchange for avoiding taking the case actually going to trial (see (Wacquant 2026b) for a vivid account of how these unfold). Here, I use the term "negotiation" to refer to a broader class of practices of exchange and compromise. Different from plea bargains, in the present analysis, the negotiations I describe take place during the trial itself, rather than before the trial.

> eventually reduced, it'd only be when it gets to the Supreme Court, and by the time your case gets to *that* court, you'll already have served most of your time in closed regime confinement."

In other courtrooms, public defenders are instead more concerned with the prosecutor's position:

> The judge, he gives the minimum privileged sentence of one year and eight months in open regime even in situations that involve a large quantity of drugs. If I were a judge, *I* wouldn't even give a sentence that low. If I can't convince *myself* of the sentence then I know the prosecutor's appeal to a higher court is also likely to worsen things for my client if we don't strike a deal.

Strategies then are determined in relation to the 'truth' about the situation that is being constructed within the courtroom's interpretive terrain, which may be distinct from what may have actually happened: "There are a lot of situations where it's inevitable that they're going to be convicted no matter what happened, based on the materials in the file. There are some cases where I really struggle between letting my client give the statement that feels he has had the chance to state his own truth versus convincing him to officially confess because I know it's the only chance of him getting a better sentence."

Crucially, this distinction between what may have happened and the possible truths that can be fused about the case situation is not just a consideration for the public defender. During one of my afternoons observing Mario's (public defender) work in court, he recommended to his client that he confess to the drug trafficking charge, despite Anderson's (client) insistence that he had been at the location to buy drugs for himself. "Based on the story that the evidence tells, you are going to be convicted. This judge gives 'good' sentences, better than most, but the prosecutor might think it's too low and appeal it, and I can't guarantee it won't get worse for you if they do. If you confess, you'll get a sentence that's lower than most courtrooms, and the prosecutor can't appeal it." After Anderson signed the written confession, the judge himself told Anderson that he was "fortunate" to have not landed in another courtroom:

> [Judge]: But you have to be more careful. Now that you have this conviction, you're no longer a first-time offender. A future drug trafficking conviction will land you in prison, and for more than the minimum of five years. So, the next time you think about going to the *boca* to buy some drugs—
>
> [Anderson's eyes open wide, his eyebrows raise and he nods his head at the judge]: Yes, that *is* what—
>
> [Judge]: Think twice, because if there's a police raid and everyone starts to scramble and run away, you know that the police are going to peg it on the *neguinho* ["little black boy"].

This rare admission by the judge of his skepticism of what actually happened in Anderson's case was met with little reaction by neither the public defender nor prosecutor. Indeed, among the minority of judges with "less punitive" sentences, public defenders

themselves noted in interviews that the constraints within which they work limit how far a judge can go in their skepticism.

Over time, routine interactions among courtroom workgroup members allow each actor to anticipate the range of possible ways in which the others are likely to interpret a specific case. In particular, members develop a sense of the range of possible sentencing outcomes based on these anticipated interpretations in a specific situation—what has been described in other contexts as the sentencing "going rate" or "rule of thumb" (e.g. Eisenstein and Jacob 1977); this in turn constrains the range of possible interpretations and truths that can be produced about a situation. Precisely because of the significance of the interactional dynamic, the "rule of thumb" among one courtroom workgroup does not necessarily align with the interpretations of other courts.

Amid these dynamics public defenders, prosecutors and judges develop habituated routines of navigating their shared interpretive terrain. Public defenders' familiarity with their terrain's constraints allows them to accumulate a "stock of knowledge" (borrowing from Emirbayer and Mische 1998) for them to more effectively anticipate the interests and points of view of prosecutors and judges and to strategize in ways that avoid certain compromising trajectories for their client. However, these very routines produce stocks of knowledge that that can also risk skewing evaluations of the likely outcome of potentially alternative actions:

> As I walked down the courthouse halls, I ran into Carla [public defender], who was standing in front of her office door with her face cringed. I asked her what was wrong. Carla had been taking on the courtroom hearings of her colleague. In contrast to Carla's courtroom, most of her colleague's cases were resolved by striking deals with both the prosecutor and judge. And Carla had refused to strike a deal in a situation where she learned her colleague would have:
>
> "I didn't see any advantage for my client to confess, so I counseled my client to appeal the judge's sentence to the higher appellate court instead. I sometimes think my colleague has lost a sense of how things might turn out in higher courts and is too quick to strike deals now. They appeal too infrequently now to have a sense of how it would have actually turned out in a higher court."

Now that the court routine in Carla's colleague's courtroom was set into motion, however, breaking from that routine, or at least attempting to, could yield new consequences for the courtroom dynamic—and potentially more jeopardizing ones for future clients. Indeed, Carla went on to say that the *judge* had castigated her for "breaking trust" among their workgroup, emphasizing that the prosecutor would have "come down harder" if they had known there would be a defense appeal.

DISCUSSION AND CONCLUSION

Penal state administration is the most routine means by which state authorities exercise coercion within their jurisdictions of rule with profound implications for the material and symbolic organization of social life, and the divisions and hierarchies that characterize it (Wacquant 2026a). As a collection of words and concepts (Bourdieu 1986), written law is a crucial resource for authorities to orient and legitimize how and toward whom authorities

exercise penal power. Yet the symbolic power of the law to do so depends on the authorities mandated to interpret and wage it in individual situations; their everyday work is therefore crucial to how penal state power is at once highly selective, rationalizing and arbitrary.

On the front end, policing practices selectively target the poor and socially marginalized people, who are the overwhelming target of those who face state prosecution and sanction. Yet who among them will become consolidated as a legitimate object of state coercion during penal court procedures is shaped by the many social forces that influence court actors' struggles over how people and behaviors should be classified in written law. Within the horizontal and vertical constraints that compose the *interpretive terrain* of individual courtrooms, legal aid workers seek to mitigate the punishment their clients face through strategies to intervene in other court actors' interpretations about their client's relationship to legal meanings of 'criminality' and the 'just measure' of physical force as sanction. Over time, legal aid workers accumulate a "stock of knowledge" (*pace* Emirbayer and Mische 1998) that allows them to identify strategies that can more effectively mitigate punishment. However, their stock of knowledge is also skewed by the relational dynamics of the courtrooms in which they most frequently work, which over time may obscure their judgements about the viability of alternative strategies to defend their client. The work and strategies public defenders employ in São Paulo city to defend clients facing state prosecution for drug trafficking are especially salient to elaborate this dynamic.

Latin America's largest metropolis of São Paulo city is a core hub in transnational multi-billion dollar illicit drug markets; yet the overwhelming majority of people arrested and charged for drug trafficking are poor men, who are disproportionately *preto* or *pardo* and arrested during police patrols of marginalized neighborhoods. Public defenders are the primary source of legal counsel for most defendants, and they face many shared challenges as they seek to mitigate the harm their clients will face—from resource and time constraints, to the challenges for potential defense witnesses' to come forward to provide testimony, due to their distrust and fears (a) of *commandos* that control their community as well as (b) state authorities, including the arresting officers present in court hearings. Such constraints make it particularly difficult to instigate doubt in the minds of judges and prosecutors about the guilt of their client in most cases; however, the perspectives of individual judges and prosecutors and the relational dynamics of the courtroom workgroup nonetheless produce distinct interpretive terrains; which public defenders navigate to mitigate the punishment their clients face in different courtrooms.

The same public defender may exercise different strategies in each courtroom as they consider the horizontal and vertical constraints of each interpretive terrain, especially (respectively) what they anticipate to be: (1) the relative validity that prosecutors and judges attribute to police work and statements and (2) the likelihood that the "going rate" of punishment in their court will align or not with the interpretations of higher appellate courts. Variation along these dimensions can contribute to significantly different routines for public defenders in different courtrooms, which inform public defenders' decisions about which actions they should or should not take to mitigate punishment—be it to pursue a line of questioning with testifying police officers to "set up" a more effective court appeal, negotiating a client's confession to neutralize a prosecutor's pursuit of harsher sanction, or deciding when *not* to put a willing witness on the stand to avoid further jeopardizing their client.

These routines familiarize each public defender with the likely outcome of certain strategies that can advantage individual clients; however, they simultaneously distance them from anticipating the likely outcome of alternative actions that they have come to less frequently take--over time, this can come to blur the very line between whether a public defender should

contest their client's punishment or further solidify it by *negotiating* a formal confession independent of what may or may not have actually happened.

The following sections elaborate this study's contributions to scholarship on penality, state power and mental labor.

Political sociology of punishment

This analysis advances the political sociology of punishment in several ways. By examining public defenders' strategies to defend their clients in São Paulo's courts, I extend research to the ways in which legal aid workers influence court processes amid dramatic penal state transformations across Latin America. Since the 1990s, Latin American penal procedures and institutions have undergone the most dramatic transformation in two centuries, described as a transition from inquisitorial procedural models inherited from Spanish and Portuguese colonial rule to adversarial procedural models backed by discourses to "democratize criminal justice" (Langer 2007). Yet recent studies spotlight the ways in which the unfolding of court reforms in practice has further reinforced inequalities and impacted poor people at much greater scale in comparison to the authoritarian regimes that immediately preceded them (Bergman and Fondevila 2021; Ciocchini 2017; Santos 2024: 8).

The scant empirical research on legal aid workers in Latin America emphasizes the challenges they face to defend their clients (Ribeiro and Fondevila 2023). This study demonstrates how legal aid workers still do intervene in court processes; and I show how differences in their strategies and influence—even within the same courthouse—are shaped by important variation in the horizontal and vertical constraints of their courtrooms' interpretive terrains. These findings invite future inquiry on the conditions that influence legal aid professionals' ability to mitigate legal processes of criminalization in Latin America, as well as the orientation of the selective and rationalizing court routines to which they are actively contributing amid ongoing sweeping reforms.

This study also advances research on legal aid and court processes more broadly. First, Lisa McIntyre's (1987) classic scholarship on public defenders in the United States highlights the "janus-faced" function of legal aid services: on the one side they can keep the power of other court actors in check, and on the other, they legitimize court processes and convictions that have shown to exacerbate inequalities. Building on this contribution, I spotlight legal aid workers' strategies to mitigate punishment as the key means by which this janus-faced function operates. The scant empirical research on legal aid workers in penal court contexts has focused on the challenges these actors face to providing "effective legal counsel" (Backus and Marcus 2018; Wice 2005); however, "effectiveness" is tremendously relative within a profession mandated to defend clients in processes that routinely criminalize and punish them. My analysis' shift in focus from ideals of "effective legal counsel" to examining legal aid *strategies to mitigate punishment* offers a means of accounting for the significant constraints within which legal aid professionals work, while also probing the agency they still do exercise in court processes.

Second, by examining when and why public defenders employ certain strategies to mitigate punishment in the context of São Paulo, I identify two dynamics important to explaining court processes and outcomes: (1) court authorities' relative (dis)trust in the validity of police work; and (2) their perceptions of the likely vertical (mis)alignment between local and higher court decisions. Law-in-action research has disproportionately focused on U.S. court contexts, where defendants most often admit a guilty plea before ever reaching (bench or jury) trial—

which has eclipsed the significance of court authorities' relative skepticism of police work (or not) to shaping court convictions. An important exception is Jesus's (2018) discursive analysis of court decisions in São Paulo, where she demonstrates the significance of judges' assumptions about police work to producing criminalization. By turning attention to public defenders' strategies to mitigate punishment within the same jurisdiction analyzed by Jesus (2018), I show how the same public defender is attentive to important variation in prosecutors' and judges' assumptions across different courtrooms in ways that have practical implications for public defender strategies and case outcomes.

These findings invite future research into court actors' perspectives on police work to explain patterns in conviction and sentencing—be it the perspectives of prosecutors and judges about the police, or the perspectives of jurors. Doing so is important to understand not only potential differences in case outcomes among those that *do* make it to trial, but even for explaining when they are (or are not) more likely to be resolved before ever getting to that procedural stage, as is the case in 97 percent of felony charges resolved by plea deals in the United States, for example (Wacquant 2026a).

Relatedly, by examining a court context in which the majority of felony cases go to bench trial, I highlight the significance of court actors' *perceptions* of likely outcomes in higher courts of appeal to explaining when and how cases are resolved. This finding invites future inquiry into the relational dynamics between local and higher courts of appeal, and also the sources of knowledge that inform court actors' assumptions about them. As shown in the present analysis, where some public defenders routinely contest court decisions while others routinely engage in negotiations, *perceptions* of this relative vertical relationship are informed by court actors' work routines in ways that can both help and hurt their judgements. These findings invite greater analytic scrutiny into when and why penal court processes are resolved by plea bargain deals in other contexts, for example—which is not only the predominant means of resolution in U.S. courts, but also a mechanism that has become increasingly integrated into penal procedures across parts of Latin America and Asia since the early 21st century.

Third, this study more broadly spotlights inquiry into legal aid strategies to mitigate punishment as a method for identifying and synthesizing the multi-scalar forces the shape similarities and differences in penal court processes and outcomes. I elaborate three strategies to structure such inquiry: instigating doubt, contestation and negotiation. Probing when and why legal aid workers employ them in different contexts is a useful analytic approach for generating hypotheses and comparative research: When do legal aid workers choose to employ each of these strategies, or not, within different court contexts, and *why*? What are the structural, cultural and interactional dynamics that influence their decisions and likely influence? Beyond these three strategies, what are other means by which legal aid workers seek to influence meanings of their clients' criminality and the "just measure" of sanction; and what are the features of certain interpretive terrains that make such strategies of meaning-making viable?

Theories of state power

Scholarship on state power emphasizes the central role of coercion for rulers to legitimize their authority (Elias 2000; Weber 2019) ; however, this literature generally eclipses the significance of courts and court actors to this effect. By contrast, amid the vast empirical research on courts and law-in-action, 'the State' has been undertheorized. A recent and pivotal exception is Wacquant's (2026a) conceptualization of ground-level court actors as key producers

of penal state power in action; through their everyday work of fabricating the law's symbolic power at ground level, their practices are integral to how the penal state operates as both "class-splitting" and "race-making" institution. Wacquant's empirical analysis of the work of court actors in a California court highlights the dynamic processes of strategic actions and informal negotiations among courtroom workgroup members that animate the daily production of state authority, social dispossession and citizenship. By probing the routine negotiations of guilty pleas, Wacquant centers the prosecutor as the "human spear of the state." Indeed, in the United States, prosecutors hold an exceptional degree of authority. By contrast, however, the inquisitorial procedures that have characterized court contexts in many other countries have historically consecrated judges as holders of great discretionary power.

In many Latin American countries, including Brazil, changes in written penal procedures since the late 20th century indeed mark a formal transition from inquisitorial procedures to more "adversarial ones" that on paper represent a reorganization and redistribution of power among court actors, including by conferring relatively greater authority to prosecutors. In my analysis, however, these relational dynamics vary significantly from one courtroom to the next—and in some, public defenders negotiate with the judge instead of the prosecutor due to the former routinely still surpassing the punitiveness of the latter. In others, prosecutors go so far as to support public defenders' appeals to higher courts. These findings suggest the importance of future inquiry into which actors serve as the human spear of the state in different empirical contexts, and how the relative distribution of authority across courtrooms becomes sufficiently systematic within a jurisdiction that it is consolidated into one particular profession at all.

Whomever is at the head of penal persecution, the defense attorney is the primary shield of protection for the person facing. Amid an overall dearth of empirical research on defense attorneys, Liu and Halliday (2016) importantly do spotlight inquiry on defense attorneys as an important method for examining state power. In this vein, they examine the perspectives of defense attorneys in China to demonstrate how formal procedural reforms have not corresponded to "rule of law" in practice. By drawing instead on conceptualizations of the law as symbolic state power (Bourdieu 1986; Wacquant 2026a), I bring attention to how legal defense work is less about keeping "abuses" of state power in check and more about working to influence the very boundary between 'legitimate' and 'illegitimate' state violence to begin with.

By examining public defenders' strategies to influence meanings of "criminality" and the "just measure of force" within their courtrooms' interpretive terrains, this study also advances scholarship on how states naturalize the routine use of coercive power. Research emphasizes the importance of consolidating an *object* of violence to routinize and naturalize state coercion within an existing cultural infrastructure (Norton 2014a). Other work highlights the importance of the *modes of coercion* rulers exercise to their ability to naturalize routine coercion (Pratt 2005; Santos 2022). In the present analysis, I demonstrate how the object and modes of culturally acceptable violence are constructed *relationally.* In so doing, this work invites greater analytic scrutiny into this relational dimension of how state authorities coordinate state violence and more effectively naturalize it (or not)—be it through penality, war, or the expansion or preservation of empire.

Third, I advance research on the everyday work of street level bureaucrats who produce and orient state administration. Seim's (2017) "labor theory of poverty governance" highlights the practical labor involved in street level bureaucrats' work of managing the poor, and the horizontal and vertical conditions that constrain their discretionary practices. By extending this analytic approach to penal court actors I show how the work of street-level bureaucrats is not

only practical labor, but also a *labor of interpretation*. The work of public defenders to influence penal court processes involves perceiving and influencing the possibilities for legal classification within the constraints of their work's interpretive terrain. Far from a formalistic exercise, this involves not only perceiving the range of viable interpretations of written law but also anticipating the likely interpretations and application of legal power by prosecutors and judges. Given the context and nature of court work, the elasticity of the rules that guide their work is especially apparent; however, this type of interpretive labor in relation to elastic categories and rules is also pertinent to other street level bureaucrats—be it a professional with license and expertise to diagnose people's physical pain or 'state of mind,' classify people's financial 'responsibility' or identify 'suspicious' behaviors.

Attention to the ways in which street-level bureaucrats navigate their work's interpretive terrain is a useful not only to account for street-level bureaucrats' discretionary practices, but also their *restraint or absence of action*. By analyzing public defenders' strategies to mitigate punishment in drug trafficking cases, I show that certain strategies involve taking concrete actions; in others, however, public defenders intentionally chose *not* to act (e.g. not asking questions during an interrogation) or *not* put a willing witness on the stand in order to avoid instigating compromising interpretations about their client. Analyses of service providers' strategies to advocate for clients or manage them within their work-world's interpretive terrain therefore contributes to identifying the constraints that shape their role and influence; it also facilitates making important distinctions between the inaction of street-level bureaucrats as negligence, versus that which may be a prudent strategy to avoid further harm.

Sociology of mental labor [very new section – still fleshing out]

Daminger's (2019) analysis of the division of household labor demonstrates the importance of accounting for the unequal distribution of cognitive work in analyses of inequality. In the present analysis I extend inquiry on mental work to interpretation. Scholars of situational action demonstrate how even the most habituated of practices are based on people's interpretations of the situation (Norton 2014b; Alexander 2004; Emirbayer and Mische 1998). Mental work is not only cognitive, then, but also always interpretive. The mental labor of interpreting situations to orient practical action is nonetheless more pronounced in certain situations than in others; and also for certain people more than others. Indeed, the meaning of a situation may be something that becomes almost taken for granted. For others, interpretation may become a faculty they more consciously wage to achieve various different objectives. For others still, it is a core resource of survival waged so routinely in everyday life that it may congeal into what a "double-consciousness"—a sort of "second sight"—to navigate the symbolic divisions that produce social hierarchies and inequalities with profound implications for peoples' lives, including through assumptions about who are "honest citizens" and who are punishment-deserving "criminals."

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